

ASCII MASTER FLOW – PANEL 1/12: Two routes, two logics

DISADVANTAGE -> social and educational backwardness OR pure economic weakness

-> ROUTE A: Article 15(4) and Article 16(4); listed classes; 27 per cent; creamy-layer filter

-> ROUTE B: Article 15(6) and Article 16(6); up to 10 per cent; excludes SC, ST and OBC

-> EVIDENCE A: community backwardness; EVIDENCE B: notified income and asset test

TEST -> neither route supplies the other route's evidence or its filter

MUST REMEMBER: OBC, EWS and social mobility analysis separates social and educational...

ASCI MASTER FLOW – PANEL 2/12: Law bank

ARTICLE 15(4) AND 16(4) -> special provision and reservation for backward classes
ARTICLE 342A -> Central List; President specifies; Parliament alone includes or excludes
ARTICLE 338B -> the national commission for backward classes, inserted in 2018
ARTICLE 15(6) AND 16(6) -> economically weaker sections, inserted in 2019
STATUTE -> National Commission for Backward Classes Act, 1993, later repealed

ASCII MASTER FLOW – PANEL 3/12: List-making ladder

STEP 1 -> community backwardness examined against social and educational indicators

STEP 2 -> commission examines inclusion or exclusion requests and advises

STEP 3 -> President specifies the Central List under Article 342A

STEP 4 -> Parliament alone varies that list by including or excluding a community

PARALLEL -> States prepare their own lists for State purposes after the 105th Amendment

ASCII MASTER FLOW – PANEL 4/12: Commission status card

CONSTITUTED -> under the Act of 1993 dated 2 April 1993; reconstituted seven times to 2016

REPEALED -> the 1993 Act, through the Repeal Act of 2018 dated 14 August 2018

ELEVATED -> eighth commission, 102nd Amendment dated 11 August 2018, Article 338B inserted

COMPOSITION -> Chairperson, Vice-Chairperson and three other Members

RANK -> Secretary to the Government of India; conditions notified on 23 August 2018

ASCII MASTER FLOW – PANEL 5/12: Creamy-layer test

LIMB 1 STATUS -> notified parental service and status categories exclude the applicant

LIMB 2 INCOME -> ceiling of ₹8 lakh applied over three consecutive years

EXCLUSIONS -> salary income and agricultural-land income are not simply clubbed in

SCOPE -> the filter runs inside the other backward classes only

ERROR -> transferring the filter to Scheduled Caste or Scheduled Tribe reservation

ASCII MASTER FLOW – PANEL 6/12: Amendment and judgment sequence

1992 -> Indra Sawhney upholds 27 per cent, mandates creamy layer, states the 50 per cent ceiling
2018 -> 102nd Amendment inserts Article 338B and Article 342A; the 1993 Act is repealed
2019 -> 103rd Amendment inserts Article 15(6) and Article 16(6) for economic weakness
2021 -> Maratha reservation reading centralises list-making; 105th Amendment restores States
2022 -> Janhit Abhiyan upholds the economic criterion by a majority of three to two

ASCII MASTER FLOW – PANEL 7/12: Economic-criterion card

NOTIFIED -> Department of Personnel and Training notification dated 31 January 2019

INCOME -> gross annual family income below ₹8 lakh

LAND -> family must not own five acres or more of agricultural land

BUILT -> no residential flat of 1,000 sq ft or more

PLOT -> no plot of 100 sq yards in a notified municipality or 200 sq yards elsewhere

ASCII MASTER FLOW – PANEL 8/12: Same figure, different test

CREAMY LAYER -> ₹8 lakh since September 2017; three consecutive years

PLUS -> notified parental service and status categories; salary and land income excluded

ECONOMIC CRITERION -> ₹8 lakh since January 2019; gross annual family income

PLUS -> notified land, flat and plot asset limits, unchanged since 2019

RULE -> identical arithmetic proves nothing about identical eligibility

ASCCII MASTER FLOW – PANEL 9/12: Judgment split

HELD -> reservation for economically weaker sections is constitutionally valid

MAJORITY -> an economic criterion alone can ground affirmative action

MAJORITY -> exceeding the ceiling for a new category does not breach the basic structure

DISSENT -> excluding the reserved categories from a new benefit denies substantive equality

MARGIN -> three to two, so the disagreement is part of the holding's meaning

ASCII MASTER FLOW – PANEL 10/12: Distribution problem

QUOTA -> 27 per cent for the other backward classes as a single undivided block

OBSERVED -> concentration of benefit in relatively advanced communities within the block

PROPOSAL -> sub-categorisation of the quota among sub-groups

EXAMINED BY -> the commission set up in 2017; implementation pending as of mid-2026

REQUIREMENT -> backwardness and representation data for each sub-group

CLOSE DISTINCTION: OBC is not a synonym for poverty, EWS is not an OBC sub-category,...

ASCII MASTER FLOW – PANEL 11/12: Data gap

LAST PUBLISHED ALL-CASTE TABLES -> 1931

SOCIO-ECONOMIC AND CASTE CENSUS 2011 -> caste data never released or validated for policy

DECISION -> Cabinet Committee on Political Affairs, 30 April 2025, to enumerate caste

OPERATION -> all-digital 2027 Census; houselisting notified 1 April to 30 September 2026

BOUNDARY -> an approved operation is not a published dataset and validates no formula

EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Use Articles 15, 16 and 342A, NCBC, list...

ASCII MASTER FLOW – PANEL 12/12: Entry against conversion

COVERAGE -> reservation slots filled and scholarships disbursed in a reporting year

FIRST-GENERATION ACCESS -> the first family member reaching higher education or service

MOBILITY -> the next generation exceeding the beneficiary in education and occupation

STAGNATION -> children re-accessing the same reservation without progression

OWNERSHIP -> no Mains or objective demand is routed here and none is manufactured